



Any bureaucratic process can be mind numbing but in this case, it's extremely beneficial to you.

for 10 years from the date of filing, after which it has to be renewed.

What documents would you need for a trademark application in India?

Keep the finalised design of the trademark you wish to register ready. Details needed for the submission of this application will include information like name, address, nationality etc. If you have already started

using this trademark prior to applying, mention the date from when you started using it.

What is the procedure for registering a trademark in India?

Step 1: Availability of the trademark and creating an application

The first and the most vital step would be to ensure that the trademark you have chosen to register is exclusive to you and the business it will be used for. To that end, you will need to search your symbol against the existing registered trademarks in your class of goods or services. This is an important distinction. If you are in the food & beverages sector, you can have a similar trademark to someone in say, the banking sector and face no problems.

The objective of this search is to identify any potential duplicity. Generally, trademark agents or an attorney will conduct this search with the governmental department. There are two kinds of search: online and offline. It is recommended that you get both the searches done. Once found to be unique, you can proceed to the next step.

After confirming availability of the trademark, the attorneys will then go ahead and draft your application. It is vital that this be done only after your business name and logo are unique to you. It would really defeat the purpose if the first step is not completed with a certain degree of thoroughness. In the unfortunate instance that some other business entity has already